

CHARTER AND BYLAW REVIEW COMMITTEE (CBRC) REPORT FOR SPRING ANNUAL TOWN MEETING SPRING 2025

[Charter and Bylaw Review Committee Website and prior reports](#)

Activity since FATM 2024

The CBRC held seven meetings on the following dates:

November 6th, November 21st, January 28th, February 4th and March 31st. The CBRC met with the Select Board on December 18th and the Finance Committee on March 25, 2025.

Ms. Merkowitz was reappointed by the Town Moderator and rejoined the CBRC for the meeting of November 21, 2024.

During our meeting deliberations, the CBRC divided the remaining Bylaws between committee members to seek input from town agencies impacted by the current Bylaws. Two town agencies wished to make changes to select Bylaw Articles: The Board of Health and the Procurement Officer. The CBRC also felt that attention was needed for Bylaw Article 21-A Collector of Taxes and to add a new section to Bylaw 22 Town Counsel

The CBRC put forward two Warrant Articles for Spring Annual Town Meeting April 2025 to address these issues. Meetings were held to discuss, refine and approve motions as presented to the Finance Committee.

Update on Status of the Special Act

Following 2024 Fall Annual Town Meeting, the CBRC followed closely the progress to submit the necessary paperwork from three Town Meetings [Article 25 of the 2023 Fall Annual Town Meeting, Article 2 of the 2024 Special Town Meeting #1 and Article 29 of the 2024 Fall Annual Town Meeting] Required to create the Special Act. The Town Clerk's office utilized a Special Assistant to the Town Clerk, Diane Packer [former Town Clerk] to create minutes and needed Vote Certifications from the three town meetings. Ms. Packer worked with members of the CBRC, the CBRC's Special Counsel and Town Counsel to ensure all paperwork was in order. The Special Counsel's office also provided additional proof reading to ensure the document's accuracy. Once the text of the document was approved by Town Counsel, the current Town Clerk and the Special Assistant to the Town Clerk signed the documents and forwarded them to the Select Board. .

The Select Board met on December 18, 2024 to approve a letter to Representative Linsky asking that the HOME RULE PETITION FOR SPECIAL LEGISLATION TO AMEND THE HOME RULE CHARTER FOR THE TOWN OF NATICK titled AN ACT TO AMEND THE TOWN OF NATICK HOME RULE CHARTER be filed in the current two-year legislative session which began on Jan 1, 2025.

Representative David Linksy filed ["AN ACT TO AMEND THE TOWN OF NATICK HOME RULE CHARTER"](#) the first week in January 2025. In February the bill number, H.3898 was assigned to the [Joint Committee on Municipalities and Regional Government](#). The CBRC is awaiting a hearing date when the bill will be presented to this joint legislative committee. The CBRC has regular communications with Representative Linsky.

Overview of Warrant Articles and Motions for proposed Bylaw Changes

Article 23 - CBRC Report and Extension 13-0-0 Favorable support. The CBRC will provide an oral report to Town Meeting. The current term of the CBRC is through Fall 2025 Annual Town Meeting. The CBRC is not seeking a further extension at this time.

Article 24 - The CBRC filed this warrant article to deal with Article 21A Collector of Taxes, Article 41 Contracts, Town Property and Regulations of Town Boards and Officials, Article 61 Chemical Storage Tanks and Systems of the Bylaws and Article 22 Town Counsel.

- Motion A is in regard to Article 21A Collector of Taxes. Further details on this motion are on pages 105-107 of the Spring Annual Town Meeting 2025 Finance Committee Recommendation Book [Fin Com Recommendation Book]. The Finance Committee voted 13-0-0 favorably on this motion.

The motion brings Bylaw Article 21-A into compliance with Mass General Law [M.G.L.] by adjusting the interest rate charged by the town for back taxes and those in Tax Title to M.G.L. By tying this to M.G.L., these interest rates would automatically change if the statute or law were updated.

- Motion B - is also in regard to Article 21A Collector of Taxes. Further details on this motion are on page 106 of the Fin Com Recommendation Book. The Finance Committee voted 13-0-0 favorably on this motion.

The current Bylaw requires the Town Collector to publish in a local newspaper a list of the names, properties and amounts of anyone owing \$1,000 or more in unpaid local property taxes, assessments or betterments within 180 days of the fiscal year end. The Bylaw requires this list to be published in a local newspaper. The Bylaw currently only exempts from publication those unpaid taxes that are being collected or paid under a payment plan.

The proposed changes would require the publication of this list in 90 days, replace the local newspaper publication requirement with a method determined by the Town Administrator, relieving the town of finding a local newspaper and the tedious work of proof reading what was to be published. The proposed changes would also exempt payment plans that are not in default, or be eligible for an exemption under the town's senior tax deferral program but include those amounts held in tax title.

- Motion C - is also in regard to Article 21A Collector of Taxes. Further details on this motion are on pages 106-107 of the Fin Com Recommendation Book. The Finance Committee voted 13-0-0 favorably on this motion.

The proposed change adds section titles to the Bylaw consistent with other town Bylaw Articles.

- Motion D - This motion deals with Bylaw Article 41 Contracts, Town Property, and Regulations of Town Boards and Officials. Further details on this motion are on

pages 107-109 of the Fin Com Recommendation Book. The Finance Committee voted 13-0-0 favorably on this motion.

The text of these section changes were requested and written by the current procurement officer and further reviewed by Special Counsel and Town Counsel to have this Bylaw be consistent with state law and state regulations.

The motion deletes Bylaw Article 41 Sections 1 through 12 and replaces it with new text. The new text ensure procedures for contracts apply to all boards, commissions, committees and town agencies. It precludes the Bylaws from impacting the ability of the Chief Procurement Officer to exercise their duties per M.G.L. Chapter 30B. It allows for the town to manage procurement in times of emergency. It allows for records to be kept electronically and as permissible by law. Gender references are removed and the term Selectmen has been updated to Select Board.

- Motion E - is in regard to Article 81 Chemical Storage Tanks and Systems. Further details on this motion are on page 110 of the Finance Committee Recommendation Book. The Finance Committee voted 13-0-0 to refer this motion back to the sponsor, the CBRC.

The CBRC worked with the Director of Health to update this Article providing clarity that the Board of Health has authority regarding propane tanks and seeks to differentiate the necessary regulations for underground propane tanks and not outdoor propane tanks or small tanks for outdoor grills.

The Finance Committee recommended language changes for the proposed motion. The committee worked with the Director of Health and voted language changes to bring back to the Finance Committee however the Finance Committee hearings ended before the new language could be reviewed. The CBRC is committed to bring this Bylaw change back to a future Town Meeting.

- Motion F - is in regard to Article 22 Town Counsel and seeks to add a new section 9 entitled Special Zoning Advisory Council. Further details on this motion are on page 110 -111 of the Finance Committee Recommendation Book. The Finance Committee voted 13-0-0 to refer this motion back to the sponsor, the CBRC.

The CBRC met multiple times to discuss a potential Special Advisory Zoning Counsel to support the detailed work of the Planning Board, the Finance Committee and Town Meeting in updating Natick's Zoning Bylaws. This advisory Special Counsel would be familiar with Natick's Zoning Bylaws.

Zoning Bylaw changes, presented to Town Meeting are complex, sometimes extensive and require precise language to ensure that the proper changes are drafted carefully. Few on the Finance Committee or Town Meeting members are intimately familiar with Natick's Zoning Bylaws. Language in the motion outlines the appointment procedure for this special standing counsel.

The Finance Committee had suggested language changes for the motion as submitted. The Planning Board hearing on this motion was scheduled for the following evening. The Planning Board gave the CBRC only three days' of notice of their hearing of March 26th and CBRC members were unavailable at this short notice. The CBRC will consider bringing this motion back to a future Town Meeting.

Special Counsel Invoices

The CBRC approved two invoices for work provided to the committee for September, October, November and December of 2024.

October Invoice for \$4,123.73

November-December invoice for \$6,632.50

January invoice for \$2,511.95

The remaining balance in the Special Counsel Fund is \$57,068.25

The committee expects to receive invoices for the work of January to April 2025 after the 2025 Spring Annual Town Meeting.

Respectfully submitted:

Paul Griesmer, Chairperson
Saul Beaumont, Vice Chairperson
Christine Weithman, Secretary
Robert Awkward
Paul Connolly
Donna McKenzie
Harriet Merkowitz